

HOUSE No. 2471

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reduce temperature related illness in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/17/2025</i>

HOUSE No. 2471

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 2471) of Michael P. Kushmerek relative to cooling centers during periods of excessive heat. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reduce temperature related illness in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws is hereby amended by inserting after section 244 the
2 following section:-

3 Section 245. “Period(s) of Excessive Heat”, a period of time greater than three hours
4 exceeding in temperature 90 degrees Fahrenheit, and/or of a heat index greater than 95 degrees
5 Fahrenheit as determined by the National Weather Service.

6 “Cooling Measures” and “Cooling Centers”, air conditioned publicly accessible building
7 with a capacity of fifty or more individuals as determined by the state building code 780 CMR;
8 and/or a dedicated cooling tent with an internal temperature less than 75 degrees Fahrenheit, and
9 a capacity greater than 50 persons given natural body posture that is established and maintained
10 by the city or town or the Commonwealth.

11 All cities and towns in the commonwealth shall provide for their populations cooling
12 centers during periods of excessive heat. Access to these facilities shall be provided free of

13 charge to the residents of the city or town providing the service. The cooling centers must open
14 no later than one hour following the predicted beginning of the period of excessive heat, and
15 close no earlier than one hour after the period of excessive heat has concluded, or the ambient
16 outside temperature has dropped below eighty degrees Fahrenheit, according to the National
17 Weather Service, whichever occurs first. The Commonwealth of Massachusetts shall have the
18 power to repurpose facilities under their ownership for the purposes of creating a cooling center
19 in municipalities that do not otherwise have a cooling center.

20 The responsibility for funding and maintaining the aforementioned measures of cooling
21 shall fall upon the cities and towns in which they exist, except for those otherwise maintained by
22 the state of Massachusetts. The cooling center shall not require a proof of residency for accessing
23 the facility.

24 Municipalities for which the construction and/or operation and maintenance of a cooling
25 center would pose an undue burden may apply for an exemption to this bill from the Department
26 of Public Health.